

lawfull, and go commonly by the name of Factions, or Conspiracies. For a League being a connexion of men by Covenants, if there be no power given to any one Man, or Assembly (as in the condition of meer Nature) to compell them to performance, is so long onely valid, as there ariseth no just cause of distrust: and therefore Leagues between Common-wealths, over whom there is no humane Power established, to keep them all in awe, are not onely lawfull, but also profitable for the time they last. But Leagues of the Subjects of one and the same Common-wealth, where every one may obtain his right by means of the Sovereign Power, are unnecessary to the maintaining of Peace and Justice, and (in case the designe of them be evill, or Unknown to the Common-wealth) unlawfull. For all uniting of strength by private men, is, if for evill intent, unjust; if for intent unknown, dangerous to the Publique, and unjustly concealed.

Secret Cabals.

If the Sovereign Power be in a great Assembly, and a number of men, part of the Assembly, without authority, consult a part, to contrive the guidance of the rest; This is a Faction, or Conspiracy unlawfull, as being a fraudulent seducing of the Assembly for their particular interest. But if he, whose private interest is to be debated, and judged in the Assembly, make as many friends as he can; in him it is no Injustice; because in this case he is no part of the Assembly. And though he hire such friends with mony, (unlesse there be an expresse Law against it,) yet it is not Injustice. For sometimes, (as mens manners are,) Justice cannot be had without mony; and every man may think his own cause just, till it be heard, and judged.

Fends of private Families.

In all Common-wealths, if a private man entertain more servants, than the government of his estate, and lawfull employment he has for them requires, it is Faction, and unlawfull. For having the protection of the Common-wealth, he needeth not the defence of private force. And whereas in Nations not thoroughly civilized, severall numerous Families have lived in continuall hostility, and invaded one another with private force; yet it is evident enough, that they have done unjustly; or else that they had no Common-wealth.

Factions for Government.

And as Factions for Kindred, so also Factions for Government of Religion, as of Papists, Protestants, &c. or of State, as Patricians, and Plebeians of old time in *Rome*, and of Aristocraticalls and Democraticalls of old time in *Greece*, are unjust, as being contrary to the peace and safety of the people, and a taking of the Sword out of the hand of the Sovereign.

Concourse of people, is an Irregular Systeme, the lawfulnessse, or unlawfulnessse, whereof dependeth on the occasion, and on the number of them that are assembled. If the occasion be lawfull, and manifest, the Concourse is lawfull; as the usuall meeting of men at Church, or at a publique Shew, in usuall numbers: for if the numbers be extraordinarily great, the occasion is not evident; and consequently he that cannot render a particular and good account of his being amongst them, is to be judged conscious of an unlawfull, and tumultuous designe. It may be lawfull for a thousand men, to joyn in a Petition to be delivered to a Judge, or Magistrate; yet if a thousand